

Chief Justice's Court

Case :- WRIT - C No. - 21562 of 2017

Petitioner :- Sri Vikram Agrawal

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 7 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Heard Sri Ranjit Saxena, learned counsel for the petitioner and Sri A.K. Singhal holding brief for Sri Chandan Agarwal, learned counsel for the respondent Nos. 1, 2 and 3.

This petition has been preferred seeking a direction commanding the respondents to provide a new and permanent electricity connection to the petitioner. The respondents have turned down the request of the petitioner on the ground that he has failed to establish his title or ownership over the premises in question. The respondents also take the stand that during the pendency of a civil dispute the application of the petitioner cannot be considered.

Sri Ranjit Saxena contended that the respondents have proceeded to reject the claim of the petitioner solely on the ground that there exists a dispute between the petitioner and his father. He submits that irrespective of the said dispute, the respondents cannot deny an application for grant of fresh connection, in case the petitioner was to comply with all requirements as placed by the **U.P. Electricity Supply Code 2005**.

Sri A.K. Singhal, learned counsel who has appeared for the contesting respondents, has drawn our attention to the provision of Clause 4.4 of the Electricity Supply Code, 2005 as well as

the Annexure 4.2 thereof which envisages the submission of an indemnity bond in such a situation. He therefore submits that in case the petitioner were to submit an indemnity bond in accordance with the format as prescribed by Annexure 4.2, his application shall be considered fresh.

Sri Saxena submits that the petitioner would comply with the provisions of the 2005 Code and approach the respondents alongwith the indemnity bond as contemplated therein.

We accordingly **dispose of** this writ petition with the following directions:

(a) It shall be open to the petitioner to apply a fresh for grant of an electricity connection alongwith a duly executed indemnity bond as contemplated by Annexure 4.2 of the U.P. Electricity Supply Code 2005.

(b) In case such an application is made within two weeks from today, the second and third respondents shall have the same duly scrutinized and pass appropriate orders thereon.

(c) In view of the above directions, the order dated 6 April 2017 renders ineffective.

Order Date :- 17.5.2017
S. Thakur

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)

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Order on C.M. Application for Extension of Time No. 302417 of 2017

Heard Sri Ranjit Saxena, learned counsel for the applicant.

We find that the reasons given in support of the prayer for extension of time are justifiable and merit acceptance.

Accordingly we extend the period of compliance with the directions issued in the order dated 17 May 2017 by a further period of four weeks.

The application is **disposed of** accordingly.

Order Date :- 18.5.2018

LA/-

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)